

University of Leicester Act, 1958

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CHAPTER xiv

An Act to dissolve the University College Leicester and the University College of Leicester and to transfer the rights properties and liabilities of those colleges to the University of Leicester and for other purposes.

[14th May 1958.]

WHEREAS—

(1) A University College endowment fund was established in Leicester on Armistice Day nineteen hundred and eighteen and a college was opened in October of the year nineteen hundred and twenty-one under the name of the Leicester Leicestershire and Rutland College and incorporated under the Companies Acts 1908 to 1917 as a company limited by guarantee and not having a share capital:

(2) In the year nineteen hundred and twenty-seven the name of the College was changed by special resolution and with the consent of the Board of Trade to University College Leicester (hereinafter referred to as “the College”):

(3) On the petition of the College His Majesty King George VI on the fourth day of December nineteen hundred and fifty granted a charter constituting the president vice-presidents and governors for the time being of the College a body politic and corporate by the name of “the University College of Leicester” (hereinafter referred to as “the University College”):

(4) On the petition of the University College Her Majesty on the first day of May nineteen hundred and fifty-seven granted a charter constituting and founding in the city and county of Leicester a university by the name and style of “the University of Leicester” (hereinafter referred to as “the University”) for

the advancement of knowledge the diffusion and extension of arts science and learning the provision of liberal professional and technological education and with power to grant degrees and to do all such other acts and things as might be requisite in order to further the objects of the University as a place of education and learning:

(5) The courts of governors of the College and of the University College are desirous and it is expedient that the College and the University College should be merged in the University and that all rights property and liabilities of the College and the University College should be transferred to and vested in the University as provided by this Act:

(6) It is expedient that the other provisions contained in this Act should be enacted:

(7) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the University of Leicester Act 1958.

Dissolution
of colleges
and transfer
of property
to University.

2.—(1) As from the commencement of this Act the College and the University College shall by virtue of this Act be dissolved and cease to exist and all property real and personal of every description (including things in action) and all rights and privileges of the College and of the University College which immediately before the commencement of this Act belonged to or were vested in or exercisable by the College or the University College shall subject to the provisions of this Act be by virtue of this Act without any conveyance transfer or other instrument transferred to vested in and exercisable by the University for all the estate and interest therein of the College or the University College and shall be applied to the objects and purposes for which the University is incorporated.

(2) Any property which by any scheme deed will or other instrument or otherwise is held upon trust for any specific foundation or object of or connected with the College or the University College shall after the said transfer be held upon trust for and applied as far as possible to the same foundation or object of or connected with the University:

Provided that any such foundation or object may from time to time be varied or added to by deed under the seal of the University which shall have been approved by a special resolution

(as defined in the statutes of the University) of the court of the University but so that the funds and investments for the time being allocated to each specific foundation or object shall remain allocated for that specific foundation or object:

Provided also that any such deed of variation or addition shall not be of any validity until it shall have been submitted to and approved by the Privy Council and a certificate of their approval thereof signed by the Clerk of the Privy Council shall be endorsed on the deed.

(3) Subject to the provisions of subsection (2) of this section any property held by the College or the University College upon or subject to any trust or trusts (not being a trust or trusts relating to the objects and purposes for which the University is incorporated) shall be held by the University upon or subject to the trust or trusts upon or subject to which that property was held by the College or the University College previously to the transfer.

3. On the commencement of this Act all debts and liabilities of the College and of the University College shall by virtue of this Act be transferred and attached to the University and shall thereafter be discharged and satisfied by the University. Transfer of liabilities.

4. All agreements awards contracts deeds and other instruments and all actions and proceedings and causes of action or proceedings which immediately before the commencement of this Act were existing or pending in favour of or against the College or the University College shall continue and may be carried into effect enforced and prosecuted by or in favour of or against the University to the same extent or in like manner as if the University instead of the College or the University College as the case may be had been party to or interested in the same respectively. Saving for agreements deeds actions etc.

5. All professors and other members of and persons attached to or associated with the teaching staff of the University College and all salaried or paid officers and servants of the University College shall hold as nearly as practicable the same offices and places in the University as they held in the University College immediately before the commencement of this Act and upon the same terms and conditions or upon such varied terms and conditions as the council of the University may decide without prejudice to any existing rights in regard to tenure of office salary or other emoluments. Saving for existing staff of University College.

6. Any power or right of the College or of the University College to appoint or nominate a member of any educational authority or of the governing body of any educational charitable or other institution shall on the commencement of this Act be transferred to and may be exercised by the University. Transfer of power to appoint or nominate.

Extension of
privileges of
graduates.

7.—(1) A degree conferred by the University shall qualify for any office or candidature for an office for which an English university degree qualifies.

(2) A degree conferred by the University shall qualify for any privilege or exemption (being a statutory privilege or exemption or one granted by a public authority or other body including an examining body) for which an English university degree qualifies.

(3) Where an English university degree qualifies for an office or candidature for an office or for a privilege or exemption only if it is a degree of a specific kind or if it is conferred only on candidates in a specific faculty or school references in this section to a degree conferred by the University shall be construed as references to a degree of that kind or conferred on candidates in that faculty or school.

(4) References in this section to a degree include references to a diploma or other distinction.

(5) References in this section to qualification by an English university degree are references to cases where it is not germane to the qualification which university conferred the degree.

Application of
section 7 of
Mortmain etc.
Act 1888.

51 & 52 Vict.
c. 42.

Construction
of bequests
in favour of
colleges.

8. The University shall be deemed to have been included among the universities mentioned in section 7 of the Mortmain and Charitable Uses Act 1888 and that Act shall have effect accordingly.

9. Any scheme deed will or other instrument whether made or executed before or after the commencement of this Act (including any will made before the commencement of this Act by a testator living at the date of such commencement) which contains any bequest gift trust or other benefit in favour of the College or of the University College shall on and after the commencement of this Act be read and have effect as if the University were named therein instead of the College or of the University College as the case may be.

Charitable
Trusts Acts.

10. The Charitable Trusts Acts 1853 to 1939 shall not extend to the University or to any college or hall therein or to any property held for the general purposes of the University or of any college or hall therein.

Copy of Act
to be
registered.

11.—(1) The University shall deliver to the registrar of companies a printed copy of this Act and he shall retain and register it.

(2) On his registering the copy the University shall pay to the registrar a fee of five shillings.

12. The costs charges and expenses of and incidental to the Costs of Act. preparing for obtaining and passing of this Act shall be defrayed by the University out of income or out of the capital of the property by this Act transferred to the University.



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